

****October 15, 2024****

****EDPB Plenary – October 2024****

During the Plenary of the European Data Protection Board (EDPB), which took place on October 7-8, 2024, the following relevant documents were adopted to ensure the proper application of the European Data Protection Regulation:

a) ****Guideline No. 1/2024 on data processing based on Article 6(1)(f) GDPR (legitimate interest), currently under public consultation until November 20, 2024;****

This Guideline analyzes the criteria set out in Article 6(1)(f) of the GDPR that operators must meet to lawfully process personal data based on a legitimate interest, taking into account the recent decision of the Court of Justice of the European Union in case C-621/22 dated October 4, 2024. Thus, to rely on a legitimate interest, the operator must fulfill three cumulative conditions:

1. the pursuit of a legitimate interest by the operator or by a third party;
2. the necessity of processing personal data for the purpose of pursuing the legitimate interest;
3. the interests or fundamental rights and freedoms of the data subjects do not override the legitimate interest of the operator or a third party.

b) ****Opinion No. 22/2024 on certain obligations arising from the choice of processors and sub-processors.****

This Opinion relates to situations where operators rely on one or more processors and, where applicable, on subcontractors, addressing the interpretation of certain obligations of operators as well as the content of contracts between the operator and the processor appointed by the operator, which arise particularly from Article 28 of the GDPR.

More information is available at: <https://edpb.europa.eu/news>

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